AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE: J
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2. AMENDMENT/MODIFICATION NUMBER: 0001
3. EFFECTIVE DATE: 10 JUL 2025
4. REQUISITION/PURCHASE REQUISITION NUMBER:
5. PROJECT NUMBER *(If applicable)*: A030537

6. ISSUED BY — CODE: W912PM

W074 ENDIST WILMINGTON
KO CONTRACTING DIVISION, 69 DARLINGTON AVENUE
WILMINGTON, NC 28403-1343
UNITED STATES
DIANA CURL, EMAIL: DIANA.D.CURL@USACE.ARMY.MIL TELEPHONE: 910-251-4915

7. ADMINISTERED BY *(If other than Item 6)* — CODE:

SCD: PAS:

8. NAME AND ADDRESS OF CONTRACTOR *(Number, street, county, State and ZIP Code)*

CODE | FACILITY CODE

(X)

[X] 9A. AMENDMENT OF SOLICITATION NUMBER: W912PM25BA010

9B. DATED *(SEE ITEM 11)*: 02 JUL 2025

[ ] 10A. MODIFICATION OF CONTRACT/ORDER NUMBER

10B. DATED *(SEE ITEM 13)*

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

[X] The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers [ ] is extended. [X] is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:
(a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

SEE SECTION G - CONTRACT ADMINISTRATION DATA

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	
[ ]	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
[ ]	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation data, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
[ ]	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
[ ]	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor [ ] is not [ ] is required to sign this document and return ______ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (*Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

THE PURPOSE OF THIS AMENDMENT IS TO UPDATE THE BIDDER INQUIRY KEY IN SECTION 00 21 13 FROM T946K8-UICANB TO 8UX4V4-IMP9SS.
ALL OTHER TERMS AND CONDITIONS REMAIN THE SAME.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*

16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*: JENIFER M. GARLAND, CONTRACTING OFFICER

15B. CONTRACTOR/OFFEROR

(Signature of person authorized to sign)

15C. DATE SIGNED

16B. UNITED STATES OF AMERICA

Jenifer Garland

(Signature of Contracting Officer)

16C. DATE SIGNED: 10 JUL 2025

Previous edition unusable

STANDARD FORM 30 (REV. 11/2016)
Prescribed by GSA FAR (48 CFR) 53.243

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Section 00 21 13 - Instructions to Bidders

Miscellaneous text in this section has been modified to:

DISCLOSURE OF MAGNITUDE
Disclosure of Magnitude of Construction (FAR 36.204 and DFARS 236.204)

The estimated price range for this project is between $25,000,000.00 and $100,000,000.00

PROJNET
1. Solicitation/Technical Inquiries.

a. Inquiries are to be submitted via the Bidder Inquiry at the ProjNet website at https://www.projnet.org .

b. If you have technical problems accessing the Bidder Inquiry via the ProjNet website, contact the ProjNet Help Desk at 1-800-428-4357 (HELP). This number is for technical issues accessing the website ONLY.

2. This section is in conjunction with contract provision FAR 52.214-6, "Explanation to Prospective Bidders".

3. Any prospective bidder/offeror desiring an explanation or interpretation of the solicitation, drawings specifications, etc., must request it in writing via the Bidder Inquiry in ProjNet within no less than ten calendar days prior to the date of bid opening or receipt of proposals. The Government reserves the right to decline addressing questions received less than ten calendar days prior to receipt of bid opening or receipt of proposals.

4. ProjNet - Bidder Inquiry module.

a. To submit and review bid inquiry items, bidders/offerors will need to be a current registered user or self-register into system. To access Bidder Inquiry, go to the ProjNet web page at http://www.projnet.org and click the "Quick Add" link. Once at the Quick Add screen, select agency USACE, enter Bidder Inquiry Key for this solicitation listed below, and bidder's/offeror's e-mail address, then click login. If this is bidder's/offeror's first time logging in they will be taken to the Bidder Inquiry Create Account screen to self-register. Fill in all required information and click create user. Verify that information on next screen is correct and click continue. Please remember your Secret Question Answer and email address used for future access to this website.

b. From this page you may view all bidder/offeror inquiries under Reports or post a new inquiry under Submit.

c. Bidders/Offerors will receive an acknowledgement of their question via email, followed by another email notification that an answer to their question has been posted after it has been reviewed by our technical team and responded to by a Contracting Officer.

d. Bidders/Offerors are responsible for checking bid inquiry items.

e. Bidders/Offerors are requested to review the specification in its entirety, review the Bidder Inquiry System for answers to questions prior to submission of a new inquiry. The name of the submitter or firm is not published for the public on the report of all Bidder Inquiries. Bidders/ Offerors are on notice of, and assumed to be aware of, all inquiries, responses, and information posted in the Bidder Inquiry System up to the date of bid submission, whether the inquiry was generated by the Bidder themselves or another potential Bidder/ Offeror. Bidders are responsible for incorporating all such information into their bid, or for requesting further clarification."

5. Solicitation Information: **IFB/RFP No: W912PM25BA010**
Bidder Inquiry Key: **8UX4V4-IMP9SS**

SUBCONTRACTING PLAN GOALS
SUBCONTRACTING PLAN SMALL BUSINESS GOALS

1. Attention is directed to Federal Acquisition Regulations (FAR) clause 52.219-9 "Small Business Subcontracting Plan" and Defense Federal Acquisition Regulations Supplement (DFARS) clause 252.219-7003 "Small Business Subcontracting Plan (DoD Contracts). Subcontracting plans will be evaluated in accordance with Army Federal Acquisition Regulations Supplement (AFARS) Appendix DD, (APDD) "Subcontracting Plan Evaluation Guide". The guide is available at: https://www. acquisition.gov/afars/subcontracting-plan-evaluation-guide

2. Acceptability of the plan will be one of the elements considered by the Contracting Officer when determining contractor responsibility prior to award of a contract.

3. Subcontracting plans should be realistic, challenging, and achievable, with positive percentage and dollar subcontracting goals with:

a. Small Business (SB)
b. Small Disadvantaged Business (SDB)
c. Women Owned Small Business (WOSB)
d. Service Disabled Veteran Owned Small Business (SDVOSB)
e. Veteran Owned Small Business (VOSB)
f. Historically Underutilized Business Zone (HUBZone)
g. Historically Black Colleges and Universities and Minority Institutions (HBCU/MI)

4. If the proposed subcontracting goals are lower than the below U. S. Army Corps of Engineers "targets" for subcontracting, you are required to provide written justification with your proposed subcontracting plan to fully support your rationale for using lower goals.

5. You are reminded that contractors are measured against the approved subcontracting plan goals and may be assessed liquidated damages if a good faith effort has not been made toward meeting the agreed-upon goals. (See FAR clause 52.219-16 "Liquidated Damages - Subcontracting Plan".

6. The following subcontracting targets have been assigned to the U. S. Army Corps of Engineers (USACE)

USACE Subcontracting Targets
a. Small Business (SB) 28.40%
b. Small Disadvantage Business (SDB) 10.67%
c. Women Owned Small Business (WOSB) 2.34%
d. HUBzone Small Business (HUBzone) 1.42%
e. Service-Disabled Veteran Owned SB (SDVOSB) 2.07%

7. Stated percentages are based on the total amount of planned subcontracting.

8. Additional information concerning subcontracting plan requirements may be obtained from Ms. Andrea Green, Deputy for Small Business, Phone: 910-251-4774.

(End of Instruction)

REPORTING REQUIREMENTS
REPORTING REQUIREMENTS--SUBCONTRACTING PLAN

(a) Retainage will be withheld from progress payments in an amount sufficient to protect the Government's ability to assess Liquidated Damages in accordance with FAR clause 52.219-16 for failure to submit timely SF 294 and SF 295 Reports. The amount of retainage will be determined in accordance with the following formula:

(b) Total dollar amount proposed for subcontracting to small business multiplied by percentage of actual progress on the contract, up to a maximum of 10% of the given progress payment, shall be withheld from the next progress payment due after a contractor fails to submit a required report. If one or more reports have been submitted before such failure, formula for determining the amount of retainage will be adjusted by deducting any amounts reported as subcontracted to small business from the total dollar amount proposed to be subcontracted and the difference
multiplied by the percent of actual progress, up to a maximum of 10% of the given progress payment.

(End)

HARBOR MAINTENANCE FEE

Offerors or bidders contemplating use of U. S. ports in the performance of contract work are subject to paying a harbor maintenance fee as authorized under Section 1402 of the Water Resource Development Act of 1986 (Public Law 99-662). The fee imposed by the act is equal to a percentage (as set forth by the Act and amendments thereto) of the value of the commercial cargo involved. Firms performing work under U. S. Government contracts are not exempt from the act. Offerors and bidders are responsible for ensuring the applicable fee and associated cost are taken in the preparation of their offer or bid. Information pertaining to the act and list of U. S. ports which subjects the cargo to the harbor maintenance fee may be obtained from local U. S. Customs Service Offices or by writing to the Director, User Fee Task Force, Division of Inspection and Control, Room 4132, U. S. Customs Service, 1301 Constitution Avenue, N. W., Washington, DC 20229.

(End)